

OFFICE OF THE SECRETARY

PO Box 942883
Sacramento, CA 94283-0001



November 21, 2019

The Honorable James C. Emerson
Judge of the Superior Court
County of Santa Clara
191 North First Street
San Jose, CA 95113

Re: Pete Thomas Heyberger
CDCR No: P15399
Case No: 204279
Date of Sentence: October 16, 1998

Dear Honorable James C. Emerson:

The purpose of this letter is to provide the court with the authority to resentence inmate Pete Heyberger, P15399, pursuant to Penal Code (PC) Section 1170, Subdivision (d)(1). PC Section 1170, subdivision (d) provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation (CDCR), the court may recall a previously ordered sentence, provided the new sentence is no greater than the initial sentence.

As the Secretary of CDCR, I take my obligation to public safety very seriously and choose only to make exceptional conduct referrals when an inmate's behavior, while incarcerated, demonstrates a sustained compliance with departmental rules, regulations and requirements as well as prolonged participation in rehabilitative programming. These inmates have not only exhibited exceptional conduct through their ability to obey rules and regulations, but have also demonstrated a commitment to their rehabilitation through voluntary participation in self-help programs.

Inmate Heyberger has received one Rules Violation Report since being received to CDCR on October 21, 1998, however, he has remained disciplinary free since December of 2011. Inmate Heyberger is currently assigned as a Vocational Electronics student. Inmate Heyberger also participates in voluntary General Educational Development (GED), Self-Help Awareness and Rehabilitation Program (SHARP), and Narcotics Anonymous, Inmate Leisure Time Activity Groups.

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Having reviewed the enclosed documentation it appears that inmate Heyberger's sentence warrants the attention of the court. Pursuant to PC Section 1170, Subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced.

Sincerely,


Bm) RALPH M. DIAZ
Secretary

Enclosures:
Abstract of Judgment
Minute Order
Court Information-Charging Documents
Cumulative Case Summary

cc: Honorable Patricia M. Lucas, Presiding Judge
Santa Clara County District Attorney's Office
Santa Clara County Public Defender's Office